

Customer Information

Name: Montrell Jubilee		Phone: 2409064819	
Address: 702 Neptune Ave	City: Oxon Hill	State: MD	Zip: 20745

Dealer Information

Name: Koons Toyota Tysons		Phone: 571-998-1665	
Address: 8610 Leesburg Pike	City: Vienna	State: VA	Zip: 22182

Lienholder Information

Lienholder: TD BANK N.A.			
Address: PO BOX 675	City: WILMINGTON	State: OH	Zip: 45177

Vehicle/Contract Information

Year: 2022	Make: Toyota	Model: Corolla	VIN: JTDEPMAE8N3031148
Term Months: 72	Current Mileage: 20256	Effective Date: 17 Jul 2026	Contract Price: \$1720.00
Term Miles: 120000	Expiration Miles: 120000	Expiration Date: 17 Jul 2032	Deductible: Zero Deductible

Component Coverage Selection

☐ Powertrain	☐ Standard	☐ Comprehensive	☐ Comprehensive Wrap	☒ Comprehensive Certified
Covers the items listed in the Powertrain Coverage Section (includes paragraphs 1-3)	Covers the items listed in Powertrain and Standard Coverage Section (includes paragraphs 1-9)	This is our most inclusive vehicle Service Contract option. The only exclusions are the items listed in the What is Not Covered and Exclusions Sections.	For vehicles with active manufacturer powertrain coverage. The only exclusions are in the What is Not Covered Section, the Exclusions Section, and items listed under Powertrain in paragraphs 1-3.	For vehicles with extended powertrain coverage certified with the manufacturer. The only exclusions are in the What is Not Covered Section, the Exclusions Section, and items listed under Powertrain in paragraphs 1-3.

Additional Benefits

☒ Seals and Gaskets	☒ Smart Technology	☐ Disappearing Deductible	
For any Covered Component(s)/Part(s) listed or not excluded in Your selected Coverage Section.	Covers the items listed in Smart Technology Coverage Section (includes paragraph 10). Optional Coverage.	Deductible at Issuing Dealer: \$0 Away from Issuing Dealer: \$100	
☐ Lift Kit Coverage	☒ Roadside Assistance	☒ Substitute Transportation	☐ Canadian Vehicle
For Breakdowns when Your Vehicle is equipped with a lift kit less than 6 inches.	Effective for the term of this Service Contract. Coverage includes: 24-Hour nationwide emergency roadside service to help You with towing, emergency fuel/fluid delivery, flat tire change, lockout/locksmith services, and battery jumpstart of Your Covered Vehicle. To obtain Roadside Assistance, You are required to call 1-866-800-4643, Producer code: 22636. Plan: AX. Included with all coverage selections.	Substitute transportation reimbursement of up to forty dollars (\$40) per day, for up to ten (10) days, in the event of a covered repair. Included with all coverage selections.	For vehicles manufactured in Canada, an additional surcharge of \$_____ is added to the price of the Contract

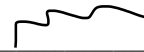
ACCEPTANCE OF COVERAGE

This Service Contract runs concurrent with, and is secondary to, any applicable manufacturer's warranty. Further, You hereby declare that You have read and accept all terms, conditions, limitations, and provisions of this Contract and that You have not relied upon the statements or promises of any person unless those statements or promises are expressly set forth in this Contract. You agree that this Contract is between You and Landcar Agency, Inc., dba Total Care Auto Powered by Asbury, the Obligor, 351 W. Opportunity Way, Suite 440, Draper, Utah 84020, (800)733-7339; **that it is neither a warranty nor an insurance policy; and that it is only an application until You have paid the Contract Price in full.** This Contract is optional, cancellable, and is not a condition of credit, or the equivalent.

Dealer Signature:



Customer Signature:



I hereby acknowledge that I agree to and have received 9 of 9 pages (Initial)


ADMINISTRATOR

Landcar Agency, Inc., dba Total Care Auto Powered by Asbury • 351 W. Opportunity Way • Suite 440 • Draper, Utah 84020 • (800) 733-7339 • FAX (801) 563-4199

DEFINITIONS

Administrator means the company that provides administrative services for this Contract. Under this Contract, that company is Landcar Agency, Inc., dba Total Care Auto Powered by Asbury, 351 W. Opportunity Way, Suite 440, Draper, Utah 84020, (800) 733-7339.

Contract, Service Contract means this Contract which You have purchased from Us to protect your vehicle, which includes the completed Registration Page.

Contract Price means the amount You paid for this Contract, as shown on the Registration Page.

Coverage means the protection You have selected as shown on the Registration Page.

Covered Component(s)/Part(s) means the mechanical and electrical parts and components described under the Covered Component Selection Sections on the Registration Page of this Contract and that are original parts on Your Vehicle at the time of purchase by You or like replacement parts and components meeting the manufacturer's specifications.

Deductible means the amount You are required to pay, as shown on the Registration Page, per repair visit for covered Mechanical Breakdowns. If You have selected Zero Deductible as shown on the Registration Page of this Contract, the Deductible(s) will be waived for any covered repairs. If You have selected a Disappearing Deductible, as shown on the Registration Page, the Deductible(s) will be waived, provided You have repairs made at the Issuing Dealer.

Effective Date means the date You purchased this Contract, as shown on the Registration Page.

Issuing Dealer means the dealer from whom You purchased this Contract, as shown on the Registration Page.

Mechanical Breakdown, or Breakdown, means a failure of a defective part, or faulty workmanship of a Covered Component(s)/Part(s) as originally supplied by the manufacturer. **It does not include gradual reduction in operating performance due to wear and tear.**

Obligor (We, Us, Ours) means the party obligated to perform or arrange to perform services pursuant to the terms of this Contract and is also known as the Obligor, Service Contract Provider, Provider, and Service Company. The Obligor of this Contract is Landcar Agency, Inc., dba Total Care Auto Powered by Asbury, 351 W. Opportunity Way, Suite 440, Draper, Utah 84020, (800)733-7339.

Purchase Receipts means documentation of payment for repairs or maintenance showing Vehicle identification information, date of purchase, customer information, itemized part, and repair information, including part numbers with corresponding labor time and totals. Verifiable automated or electronically generated transaction receipt is considered proof for refund requests or maintenance verification.

Reasonable Costs are pricing of parts not to exceed MSRP, billed labor time equivalent to ALLDATA labor time guide, and labor cost per hour not to exceed established labor rate for Issuing Dealer.

Registration Page means the document which must be attached to and becomes part of this Contract. It lists information regarding You, Your Vehicle, Coverage selected, and other vital information.

You and Your means the Contract holder/Customer as shown on the Registration Page, or the person to whom this Contract was properly transferred.

Vehicle means the Vehicle which is described on the Registration Page.

COVERAGE

We will repair, replace, or reimburse the Contract holder for Reasonable Costs of parts and/ or labor to repair or replace any of the Covered Component(s)/Part(s) listed or not excluded in this Contract if required due to a Mechanical Breakdown. **Replacement component(s)/part(s) will be new/remanufactured as originally equipped by the manufacturer or of like kind and quality when available. Reimbursement is subject to the Deductible stated on the Registration Page. The Deductible applies to each repair visit.**

COVERED COMPONENT(S)/PART(S):

The following are the only components and parts that are covered in the event of a Mechanical Breakdown.

POWERTRAIN ONLY

1. **ENGINE:** Pistons, piston rings and pins, crankshaft and main bearings, connecting rods and rod bearings, harmonic balancer, camshaft, balance shaft, cam bearings, timing gears, variable cam adjusting actuator/solenoids, timing chains, timing chain cover, timing chain guides, timing chain tensioners, timing chain cassettes, variable lifter oil manifold, rocker shafts and towers, rocker bushings, valves, valve springs, guides and seats, valve push rods and lifters, intake and exhaust manifolds, oil pan (**if damaged by internally lubricated components**), low pressure oil pump, oil jets, oil cooler and lines, water pump, fan clutch, cylinder head(s), valve cover(s), engine block, motor mounts, accessory drive tensioner and idler pulley, cylinder barrels, and all internally lubricated parts of a rotary engine.
- 2 a. **AUTOMATIC OR STANDARD TRANSMISSION:** All internally lubricated parts: bands, pumps, planetary gears, internal shafts, thrust washers, internal bearings, governor, valve body, servo and accumulator assemblies, torque converter, counter shaft gears, input shaft, internal shift forks and rails, synchro rings, transmission cooler and lines, shift hub assemblies, clutch slave cylinder, clutch master cylinder, flywheel, ring gear, flex plate, transmission mounts, transmission case, pan and side cover (**if damaged by failure of an internally lubricated part**).
- b. **TRANSFER CASE & POWER TAKE-OFF UNIT:** All internally lubricated parts: bands, pumps, planetary gears, internal shaft, thrust washers, internal bearings, governor, counter shaft gears, input shaft, internal shift forks and rails, synchro rings, shift hub assemblies, transfer/ PTU case (**if damaged by failure of an internally lubricated part**).
3. **DRIVEAXLE OR TRANSAXLE ASSEMBLY COMPONENTS:** Pinion/side gears and bearings, ring gear, thrust washers, universal joints, carrier bearing, internally lubricated differential bearings, differential cover, housing(s) (**if damaged by failure of an internally lubricated part**), lubricated limited slip components, automatic/manual locking hubs, constant velocity axle, axle shafts, and driveshaft.

STANDARD

4. **FUEL SYSTEM:** Diesel injection pump, mechanical fuel pump, fuel tank, steel fuel lines, fuel tank check valve, airflow meter, throttle body, idle control valve, throttle linkage, and factory- installed supercharger or turbocharger.
5. **FRONT AND REAR SUSPENSION:** Upper and lower control arms, control arm shafts, suspension bushings, upper and lower ball joints, strut mounts, spindle and spindle support, steering knuckle, stabilizer bar, sway bar and links, and front or rear hub bearings.
6. **BRAKING SYSTEM:** Master cylinder and reservoir, brake light switch, vacuum assist booster, brake hydro boost unit, power brake cylinder, wheel cylinders, calipers, proportioning valve, hill holder valve, steel hydraulic lines and fittings, backing plate, and mounting hardware.
7. **STEERING:** Internally lubricated parts contained within the steering gear box or rack and pinion housing, power steering pump and pulley, high pressure line, pressure return line, power steering control valve, electric power steering motor, steering center links, steering speed sensor, power steering cooler (**factory-installed**), steering intermediate shaft, and steering gear box or rack and pinion housing (**if damaged by failure of an internally lubricated part**).
8. **AIR CONDITIONING AND HEATING:** Condenser, compressor, evaporator, receiver/drier, magnetic clutch assembly, expansion valve, accumulator, high pressure line, low pressure line, heater core, blend air door, heater A/C control actuators, heater control valve, and radiator. Refrigerant in conjunction with component replacement.
9. **ELECTRICAL/ELECTRONICS:** Alternator/generator, voltage regulator, wiper motor(s), starter motor and solenoid, manually operated stand-alone switches, condenser fan motor, cooling fan motor and sensor, HVAC blower motor, clock spring or spiral cable, power seat motor, heated seat element, power sunroof motor, convertible top motor, power antenna motor, trunk release motor, power window motor, window regulator, power door lock solenoid, power sliding door motor, power headlight motors, oil pressure sending unit, transfer case shift motor, transfer case position and speed sensors, electric fuel pump and fuel level sending unit, electronic fuel injection module, powertrain control module and sensors, electronic transmission control module and sensors, HVAC control module and sensors, manual adjusting climate control unit, engine wiring harness, power distribution module, limiter valve, ABS control module, ABS wheel speed sensor, ABS hydraulic control unit, ABS pressure switch, and ABS pump and motor, lift gate motors.
10. **LIFT/ KIT COVERAGE:** We will pay for covered Breakdowns to Your Vehicle when Your Vehicle is equipped with a lift kit not to exceed 6 inches. If the lift kit includes oversize wheels and/or tires, overall width and height may not exceed 2 inches from the original manufacturer tire width and height. **The lift kit itself, all of its assembly and any aftermarket and/or manufacturer or dealer installed lift kit accessories and/or equipment are not covered.**

SMART TECHNOLOGY

11. FACTORY-INSTALLED COMPONENTS: Adaptive or standard cruise control module, cruise control actuator, active grille shutter actuator, navigation system, electronic instrument cluster, electronic level control computer and sensors, suspension compressor, body control module, camera, LiDAR/radar sensors, bumper-mounted proximity sensor, lane management system, all hybrid electrical components **excluding batteries and external charging cable.**

COMPREHENSIVE—WHAT IS NOT COVERED

ALL MANUFACTURER ORIGINAL EQUIPMENT PARTS INSTALLED BY THE MANUFACTURER ARE COVERED UNDER THIS AGREEMENT FOR MECHANICAL FAILURE, UNLESS OTHERWISE EXCLUDED. THE ITEMS AND SERVICES LISTED BELOW ARE EXCLUDED: accessory drivebelts, air bag system, antenna mast, any parts or components of an alternative fuel system (natural gas, propane, hydrogen, methanol, etc.), ash trays, speakers, batteries, battery cables, body fasteners, body or frame mounting bushings, body panels, bolts, brake drums, brake lining and shoes, brake pads, brake rotors, bright metal, carpet, cellular telephone, center console, chassis frame and bumpers, chrome, clips, convertible top, coolant hoses and lines, covers, cup holders, diesel particulate filter, diesel exhaust fluid system, dash cover and pad, door panels, door trim, aftermarket DVD player and screen, emission systems, EGR system, EVAP system, secondary AIR system, exhaust system and catalytic converter, exterior lighting, fabric, fasteners, filters and filter housings, fuel filler cap, fuel vapor canister, fuses and fusible links, glass (including windshields), glove box, glow plugs, handles, headliner, hinges, electric and hybrid external charging cord, electric and hybrid vehicle battery pack, insulation, interior and exterior trim and moldings, jack and tool kits, keys, key fob and transmitter, lamp assemblies, LED or HID lighting, lenses, light bulbs or sealed beams, head lamps, plastic non-mechanized components, dry transmission clutch disc, pressure plate, throw-out and pilot bearings, mirrors, module software programming or updates (unless in conjunction with module replacement), nuts, paint, PCV valve or oil separator, plug wires, proximity pass key and sensor, radiator cap, rain sensing wiper sensors, rear view mirrors, retainers, rust and corrosion damage, seat belt assembly, seat covers, sheet metals, solar panels, spark plugs, steering wheel, structural framework and welds, towing hitches or mounts, sun visors, suspension struts, shock absorbers, timing belt, tires, trim, upholstery, vacuum hoses, vents, weather stripping, wheel covers and rims, wheel lugs and lug nuts, wheels, windshield wiper arms, wiper blades and washer nozzle/sprayer, any component that has been impacted. Any air conditioning units on R.V.s or motor homes other than the chassis manufacturer's dash mounted unit.

COMPREHENSIVE WRAP

For Vehicles with existing manufacturer powertrain warranty. All manufacturer original equipment parts installed by the manufacturer are covered under this agreement for Mechanical Breakdown excluding items listed under Powertrain, Comprehensive—What Is Not Covered, and Exclusions Sections of this Contract.

COMPREHENSIVE CERTIFIED

For Vehicles with extended manufacturer powertrain warranty registered with the manufacturer. All manufacturer original equipment parts installed by the manufacturer are covered under this agreement for Mechanical Breakdown excluding items listed under Powertrain, Comprehensive—What Is Not Covered, and Exclusions Sections of this Contract.

SEALS AND GASKETS

Seal and Gasket failures on Covered Components/ Parts listed or not excluded are covered when replaced in conjunction with a covered failure, and when the Seals and Gaskets option has been selected. Minor loss of fluid or seepage is considered normal and is not considered a failure.

REGARDING ALL COVERED REPAIRS:

The following will be covered:

1. As required per manufacturer repair procedures, on covered repairs: required fluids, toe-set alignment adjustments, one time use or torque to yield hardware.
2. We will pay for reasonable, necessary, and customary diagnostic charges incurred in conjunction with a covered repair, not to exceed the labor time listed in ALLDATA.

DIAGNOSTIC TIME WILL NOT BE PAID FOR THOSE CONDITIONS WHERE THE PROPER REPAIR IS READILY APPARENT TO THE NORMAL SENSES OF SIGHT, TOUCH, SMELL, AND/OR SOUND.

SUBSTITUTE TRANSPORTATION OPTION (No Deductible applies to this benefit)

If Your Vehicle requires a repair covered by this Service Contract, we will reimburse Your actual expenses for substitute transportation, up to a rate of \$40 per day for ten (10) days with a maximum limit of four hundred dollars (\$400) per Mechanical Breakdown. Substitute Transportation coverage includes rental car reimbursement (from a licensed rental agency only), rideshare services, taxi or other public transportation service. Eligibility for benefits requires preauthorization, the transportation provider receipts, and that the Vehicle be kept at the repair facility overnight. Each additional day Your Vehicle is kept in the shop qualifies for a corresponding one-day substitute transportation benefit, up to a maximum of ten (10) days. Time spent waiting for parts, sublet or outside repairs, weekends and holidays do not qualify. The Contract Deductible does not apply to this substitute transportation benefit.

24-HOUR ROADSIDE ASSISTANCE OPTION (No Deductible applies to this benefit)

TOWING/ROAD SERVICE/LOCKOUT

In the event Your Vehicle is disabled, a service vehicle will be dispatched to Your location to assist You. In the event Your Vehicle is unable to continue under its own power, Your Vehicle may be towed to the nearest participating dealership within fifty (50) miles. In the event no participating dealer is located within fifty (50) miles of Your disablement location, You will be towed to a location within fifty (50) miles at no out-of-pocket expense by an authorized towing service. Any additional mileage will be paid by the customer at the time service is rendered. When calling for towing or road service You must call 1-866-800-4643. You will be required to give the representative assisting You the following information: Producer Code – 22636, Your Service Contract Number (located on the front right-hand corner of the Registration Page) and Your Plan Letter which is "AX." You are entitled to one (1) service per seventy-two (72) hours.

Battery Jumpstart • Flat Tire Change with Your good spare • Fuel Delivery (You are responsible for the actual cost of the delivered materials) • Lockout Assistance (passenger compartment only)

Reimbursement: In the event Your Vehicle is disabled, and You contracted for any of the above covered services on Your own, You will be able to submit Your original receipted road service expenses for reimbursement consideration. Nation Safe Drivers (NSD) will reimburse up to a maximum of fifty dollars (\$50) for towing. If You are seeking reimbursement for any other roadside service, including lockout services, NSD will reimburse up to a maximum of fifty dollars (\$50). Claim forms may be obtained online at www.nsdclaims.com or by calling toll-free 1-888-684-9327. You must send Your original receipted roadside bills along with a completed claim form to: Nation Safe Drivers, 5600 Broken Sound Blvd. NW, Boca Raton, FL 33487; Attn: Claims Department. Notwithstanding anything to the contrary contained herein, We are ultimately responsible for all benefits provided herein, including roadside assistance benefits.

YOUR ROADSIDE ASSISTANCE MEMBER ID NUMBER IS THE SAME AS YOUR VEHICLE SERVICE CONTRACT NUMBER.

- No Deductible applies to 24-Hour Emergency Roadside Service.
- 24-Hour Roadside Assistance Services and Benefits: All services and benefits are administered by Nation Motor Club, LLC. dba Nation Safe Drivers, administrative offices at 5600 Broken Sound Blvd. NW, Boca Raton, FL 33487.
- For Alabama, Alaska, and Utah members, Services and benefits are administered by Nation Safe Driver Services, Inc. located at 5600 Broken Sound Blvd. NW, Boca Raton, FL 33487.

ADDITIONAL DISCLOSURES

INSPECTION PROCESS

An inspection by the Issuing Dealer is required to be performed prior to sale on all vehicles that are not the current model year and/or have more than twelve thousand (12,000) miles at the time of sale. **Any pre-existing conditions or defects will not be covered under this Contract.**

DISAPPEARING DEDUCTIBLE

Under the Disappearing Deductible option, there will be no Deductible due if the eligible repairs or services are completed at the Issuing Dealership.

TRANSFERRING COVERAGE

If You sell the covered Vehicle or there is any other change in the ownership of Your Vehicle, this Contract will terminate, unless You apply for a transfer of the remaining Coverage under this Contract to the new owner within fifteen (15) days of the change in Vehicle ownership. You must notify the Administrator at (800) 733-7339 or in writing to 351 W. Opportunity Way, Suite 440, Draper, Utah 84020, of Your request to transfer this Contract. Upon notification of Your request to transfer, the Administrator will immediately send to You a transfer form.

You must complete the transfer form and return to the address above with the following:

1. Fifty-dollar (\$50) transfer fee.
2. A copy of the bill of sale or sales Contract showing the date and mileage of Your Vehicle at the time of sale.
3. If requested, copies of Your maintenance records showing actual oil changes and manufacturer's required maintenance. All records of maintenance performed on the Vehicle must be retained.

Copies of all maintenance records showing actual oil changes and manufacturer's required maintenance must be given to the new owner. The new owner must retain these records and is subject to the maintenance requirements as specified in this Contract. This Contract may not be transferred to another vehicle and may not be assigned to a new or used vehicle dealer or anyone other than an individual purchasing Your Vehicle from You for personal use. Additionally, this Contract may only be transferred one time.

CANCELLATIONS AND REFUNDS

1. This Contract and its Coverage can be cancelled by written request to the Administrator at any time if the Administrator receives the written request signed by the Contract holder prior to the original time or mileage of maturity. Contract and Coverage cannot be cancelled retroactively for any reason other than total loss or repossession. In the event of a total loss or repossession, regardless of whether cancellation is requested by You or the applicable lienholder, the cancellation request must be received by Administrator within ninety (90) days of the total loss event or within one hundred eighty (180) days of the repossession date. Any requests received after the ninety (90) or the one hundred eighty (180) days will be effective as of the date the request is received by the Administrator.
2. The Administrator will refund any unearned amounts to the lienholder if the Contract Price was financed, or to You if no lienholder exists, or if you submit proof of payoff with the request, no more than thirty (30) days of receiving a written request of cancellation or sooner if required by state law.
3. Any applicable lienholder shall have the right to cancel Coverage due to non-payment, total loss or repossession and be the sole payee of any unearned amount to be refunded. All lienholder cancellations will be calculated as indicated in item #4 below.
4. If this Contract is cancelled within the first thirty (30) days, You will be refunded the entire purchase price, less any claims paid. If the Contract is cancelled after thirty (30) days, You will be refunded the pro rata Contract Price paid by You based on the lesser of (a) the number of miles remaining under this Contract before expiration, or (b) the number of days remaining under this Contract before expiration, less any claims paid and a cancellation fee of the lesser of fifty dollars (\$50). Your state may differ; see the State Addenda section.

CANCELLATION BY OBLIGOR

We may cancel the Coverage afforded to You pursuant to this Contract before the Expiration Date if (a) You fail to pay the Contract Price in full, or (b) if You (I) have made a material misrepresentation related to this Contract or obtaining service hereunder, or (II) fail to perform any of the obligations or conditions provided by this Contract. If this Contract is cancelled by reason of Your nonpayment, then such cancellation will be effective ten (10) days after delivery of written notice to You of the cancellation. If this Contract is cancelled for any other reason, then such cancellation will be effective thirty (30) days after delivery of written notice to You of the cancellation. Written notice of cancellation shall be mailed to contract holder and lienholder, if applicable, at the last known addresses of contract holder and lienholder, if applicable, contained in Our records, and such written notice will state the effective date and reason for cancellation. Any refund owed will be paid or credited no more than thirty (30) days of the effective date of the cancellation or sooner if required by state law. All cancellations will be refunded according to the Cancellations and Refunds Section of this Contract; however, the cancellation fee will not apply.

CONTRACT HOLDER'S RESPONSIBILITIES

INSPECTION REQUIREMENT

If the Issuing Dealer contacts You regarding defects identified in an inspection, it is Your responsibility to return Your Vehicle to the Issuing Dealer to repair the defects. Failure to do so may result in Contract cancellation.

MAINTENANCE REQUIREMENTS

Your Vehicle owner's manual lists different servicing recommendations based on Your individual driving habits and climate conditions. You are required to follow the maintenance schedule that applies to Your conditions. Failure to follow the manufacturer's recommendations that apply to Your specific conditions may result in the denial of Coverage.

PROOF OF MAINTENANCE

It is required that You retain proof of maintenance for the service and/or repair work on Your Vehicle, regardless of if work was performed by You or a repair facility. Proof means repair orders from a licensed repair facility and/or the self-maintained log that has corresponding Purchase Receipts for oil and filter, coolant, fluids, and filters, etc. The self-maintained log without corresponding Purchase Receipts is not acceptable proof of maintenance. Repair order must be readable and understandable with customer complaint and repair diagnosis, parts, labor hours, vehicle identification number, date, vehicle mileage, Your name and signature, repair facility name, address and phone number, repair totals, and method of payment to satisfy the repair order. Handwritten repair orders and receipts will not be accepted.

FILING A CLAIM

In the event of a Mechanical Breakdown of a Covered Component(s)/ Part(s), You must:

1. Take immediate action to prevent further damage. This Contract will not cover further damage caused by continued operation after a failure occurs.
2. Return the Vehicle to the Issuing Dealer. If this is not possible, call the Administrator, for instructions at (800) 733-7339.
3. Provide repair facility with a copy of Your Contract and/or Your Contract number and evidence that You have met the proper service requirements for the Vehicle (service receipts or validated maintenance log) as described above.
4. If repairs are performed somewhere other than the Issuing Dealer, obtain authorization from the Administrator prior to teardown or any repair being made. Instruct the service manager at the repair facility to contact the Administrator to obtain authorization for the claim. The Administrator can be contacted Monday through Friday, 7:00 a.m. to 6:00 p.m. Mountain Standard Time at (800) 733-7339. Any claim for repairs that occur during normal business hours will not be covered without prior authorization. For emergency repairs (non- business hours only), after the repair facility has diagnosed the problem, call the Administrator at (800) 733-7339 and leave Your name, Contract number, description of problem, current mileage, and phone number where You can be reached on the next business day. For emergency repairs after business hours, You will be reimbursed subject to the Exclusions Section for Reasonable Costs incurred. The Administrator reserves the right to hire, at its own discretion but at no cost to You, an independent inspector for the purpose of verifying and documenting the cause of any Mechanical Breakdown. Such inspector will be a national provider with accredited inspectors that have no affiliation with and are independent from the Administrator.
5. You may need to authorize the repair facility to inspect and/or teardown Your Vehicle in order to determine the cause and the cost of the repair. You will be responsible for these charges if the failure is not covered under this Contract.
6. After the Administrator has been contacted, review with the service advisor or manager what will be covered by this Contract. **YOU MUST SIGN THE COMPLETED**

REPAIR ORDER.

7. Pay the applicable Deductible and any items not covered by this Contract. After the repair is complete, submit all repair orders and documentation to the Administrator within sixty (60) days of repair completion. The Administrator will reimburse the repair facility or You for the cost of repairs performed on Your Vehicle that is covered by this Contract and previously authorized, less any Deductible. In no event shall the benefits described in this Contract exceed the costs for repairs had they been performed by the Issuing Dealer.
8. Retain all replaced parts until Your claim is settled, as You may be required to submit these parts for inspection.
9. THE OBLIGATIONS OF THE SERVICE CONTRACT OBLIGOR TO YOU ARE GUARANTEED UNDER A SERVICE CONTRACT REIMBURSEMENT POLICY ISSUED BY LANDCAR CASUALTY COMPANY. IF THE SERVICE CONTRACT OBLIGOR IS UNABLE TO PERFORM THESE OBLIGATIONS, INCLUDING ANY REFUND OBLIGATIONS, WITHIN SIXTY (60) DAYS AFTER YOU HAVE MADE A CLAIM IN ACCORDANCE WITH THIS CONTRACT, YOU CAN FILE A CLAIM BY CALLING LANDCAR CASUALTY COMPANY FOR INSTRUCTIONS AT (800) 733-7339 OR BY WRITING TO THEM AT 351 W. OPPORTUNITY WAY, SUITE 440, DRAPER, UTAH 84020.

EXCLUSIONS

- I. This Contract does not provide Coverage for Your Vehicle when the Mechanical Breakdown or condition existed prior to the commencement of this Contract.
- II. The Contract holder is entitled to only the benefits described (see Coverage Section). This Contract does not cover:
 1. Any loss caused by negligence, misuse, abuse, or failure by the Contract holder to perform required servicing (see Contract Holder's Responsibilities Section), or any mechanical failure caused by the lack of proper and necessary amounts of coolant or lubricants regardless of cause.
 2. Repairs and/or replacements not authorized by the Administrator (except emergency repairs performed subject to Contract provisions), or loss due to any mechanical alterations to the Vehicle not recommended by the manufacturer of the Vehicle.
 3. Any loss or expense for adjustments, tune-ups, towing, road service, storage, rental vehicles, or for repairs to or replacement of any parts not covered in this Contract.
 4. Any loss caused by auto accident, collision or upset, power enhancement devices, breakage of glass, missiles, falling objects, fire, theft or larceny, explosion, earthquake, windstorm, hail, water, flood, malicious mischief or vandalism, civil commotion, lightning, nuclear contamination, freezing, smoke, or from any other cause whatsoever except as provided in this Contract.
 5. THE REPAIR OF BURNED, WORN OR CARBONED VALVES AND/OR VALVE GUIDES, AND/OR RINGS FOR THE PURPOSE OF RAISING THE ENGINE'S COMPRESSION OR CORRECTING OIL CONSUMPTION IS CONSIDERED NORMAL WEAR AND TEAR AND IS NOT COVERED.
 6. Any Mechanical Breakdown which is the direct result of a mechanical or structural defect when the manufacturer has announced its responsibility for the defect by a recall or campaign for the purpose of correcting the defect.
 7. Any loss or repair if the described Vehicle has been used for competitive driving or racing, or if used for pulling a trailer weighing in excess of manufacturer specifications or procedures.
 8. Aftermarket or non-factory supplied accessories and/or components or parts which do not meet or exceed manufacturer specifications.
 9. Any loss, repair, or replacement if the odometer has been tampered with, altered, or broken, after the Effective Date of this Contract.
 10. Any Mechanical Breakdown occurring outside the contiguous United States, Alaska, Hawaii, and Canada.
 11. Any Mechanical Breakdown which is caused by the failure of a non-covered component or part.
 12. Any failure of a non-covered component or part, whether or not it was caused by a Covered Component(s)/Part(s).
 13. Towing and rental vehicle charges incurred due to the failure of a non-covered component or part.
 14. Any repair or replacement of any Covered Component(s)/Part(s) which has not suffered a Mechanical Breakdown as defined under the Definitions Section of this Contract, but which a repair facility recommends or requires to be repaired or replaced.
 15. Any replacement or costs of any belts, hoses, or shop supplies required in connection with the repair or replacement of a covered component(s)/part(s).
 16. Any further damage to the Vehicle due to the failure to protect it shall not be recoverable. Continued operation of the Vehicle after a Mechanical Breakdown occurs shall be considered failure to protect the Vehicle.
 17. Any loss, repair or replacement that is covered by any other repair agreement, factory warranty or limited warranty. Coverage under this Contract shall be in excess to any other valid and collectible benefits, less the Deductible specified in this Contract.
 18. Manual transmission failure due to worn clutch components.
 19. Any damage caused by failures resulting from aftermarket modifications or alterations (regardless of if Vehicle was purchased with such) including, but not limited to, suspension, lift kits (unless Lift Kit coverage is selected on this Service Contract), superchargers, NOS, modified electronic engine/ transmission control programs.
 20. Restricted or plugged coolers, heater cores, radiators, or lines.
 21. Lift kits are excluded unless You have selected the Lift Kit Coverage Option on this Agreement. The lift kit itself, all of its assembly, and any aftermarket and/or manufacturer or dealer installed lift kit accessories and/or equipment are not covered.

INELIGIBLE VEHICLES

This Contract cannot be purchased for the following types of ineligible vehicles:

- A. Any import vehicle that has not been originally manufactured to U.S. specifications, and/or has been imported through means other than a factory-authorized importer or distributor, commonly known as "Gray Market" automobiles. Canadian vehicles will be accepted with an Administrator authorization only. (Surcharge required for Canadian vehicles.)
- B. Rebuilt or modified vehicles.
- C. Vehicles for which the title has been branded such as salvage, junk, rebuilt, totaled, flood, fire, or water damaged.
- D. Vehicles for which any portion of the manufacturer's warranty has been cancelled.

LIMITS OF LIABILITY

OUR LIABILITY IS LIMITED TO THE COVERAGE DESCRIBED IN THIS CONTRACT FOR REPAIR OR REPLACEMENT OF COVERED COMPONENT(S)/PART(S), TOWING, OR RENTAL VEHICLES. OUR LIABILITY IS FURTHER LIMITED AS FOLLOWS:

1. PER REPAIR VISIT: OUR LIABILITY SHALL IN NO EVENT EXCEED THE ACTUAL CASH VALUE OF THE VEHICLE IMMEDIATELY PRECEDING THE BREAKDOWN (NOT INCLUDING TAX, TITLE, LICENSE, OR ANY OTHER FEE) OR COST OF REPAIR BASED UPON NATIONAL LABOR AND PARTS MANUAL. ACTUAL CASH VALUE IS DETERMINED BY NADA OR NADA EQUIVALENT, TAKING AGE, CONDITION, AND MILEAGE INTO CONSIDERATION.
2. OVER THE LIFE OF THIS AGREEMENT: THE TOTAL OF ALL BENEFITS PAID OR PAYABLE UNDER THIS CONTRACT SHALL NOT EXCEED THE VEHICLE'S ACTUAL CASH VALUE AT THE TIME OF SALE.
3. WE SHALL NOT BE LIABLE FOR ANY INCIDENTAL OR CONSEQUENTIAL LOSSES OR DAMAGES INCLUDING, BUT NOT LIMITED TO, ANY INJURY, PROPERTY OR VEHICLE DAMAGE, LOSS OF USE OF THE DESCRIBED VEHICLE, LOSS OF TIME OR WAGES, INCONVENIENCE, COMMERCIAL LOSS, LODGING AND MEALS, OR FOR THE BREACH OF ANY EXPRESS OR IMPLIED WARRANTY ARISING BY OPERATION OF LAW, RESULTING FROM ANY PART, THE ACTIONS OR INACTIONS OF US (EXCEPT IN THE CASE OF GROSS NEGLIGENCE OR INTENTIONAL MISCONDUCT), OR ANY OTHER PARTY, OR FOR ANY OTHER REASON.
4. THIS CONTRACT APPLIES ONLY TO THE CONTRACT HOLDER AND THE VEHICLE DESCRIBED ON THE REGISTRATION PAGE OF THIS CONTRACT. IT MAY BE ASSIGNED OR TRANSFERRED TO SOMEONE THE CONTRACT HOLDER SELLS THE VEHICLE TO WHILE THIS CONTRACT IS STILL IN EFFECT (REFER TO TRANSFERRING COVERAGE SECTION FOR DETAILS).

ENTIRE AGREEMENT

This is the entire agreement between the parties, and this Contract supersedes any previous or contemporaneous agreement or discussion between the parties (whether oral or written) regarding the subject matter herein. No Issuing Dealer, other dealership, any repair shop, or any individual has the authority to make any verbal representations that would modify or change any provision of this Contract in any way. The printed provisions of this Contract outline the sole benefits which We are obligated to provide, and no other provisions are implied hereunder, and none can be implied unless originally printed (not stamped, handwritten, or verbal) in this Contract. This Contract is not valid without signature.

ARBITRATION

Where permitted by law, the parties hereby waive any right to go to court, and neither party has the right to a jury trial or to participate as any member of a class of claimants. Any controversy, claim, or dispute arising out of or related to this agreement shall be resolved by binding arbitration before a single arbitrator, upon written demand by either party, and in accordance with the rules of the American Arbitration Association.

STATE ADDENDA

The following provisions may alter this Contract if You reside in one of the states listed below. State specific provisions will replace language in the main body of this Contract if there is a conflict between language; otherwise, the state specific provisions may add to the main body of the Contract.

ALABAMA

CANCELLATIONS AND REFUNDS– The following is amended as follows:

Paragraph 4 is amended: The administrative fee (referred to in Paragraph 4 as a "cancellation fee") is twenty-five dollars (\$25), and claims will not be deducted from any cancellations, including cancellations by Us.

CANCELLATIONS AND REFUNDS– The following is added to this section:

5. If You are entitled to a full refund, a 10 percent penalty per month shall be added to a refund that is not paid or credited within 45 days after return of this Contract to Us.

ARIZONA

INELIGIBLE VEHICLES – The following is added to this section:

This Contract cannot be cancelled or voided or determined to be ineligible for the program for "Gray Market" automobiles.

CANCELLATIONS AND REFUNDS – Paragraph 4 of this section is deleted in its entirety and replaced with the following:

4. If this Contract is cancelled within the first thirty (30) days, You will be refunded the entire amount paid, less any claims paid. If the Contract is cancelled after thirty (30) days, You will be refunded the lesser of the proration of (a) the number of miles remaining under this Contract before expiration, or (b) the number of days remaining under this Contract before expiration, less any claims paid and a cancellation fee of ten percent (10%) of the Contract purchase price or fifty dollars (\$50), whichever is less. The cancellation fee will not exceed the amount of the refund due.

CANCELLATION BY OBLIGOR– The following is added to this section:

We may not cancel Your Contract due to:

A. Acts or omissions by Us, Our assignees, or subcontractors for failure to provide correct information or failure to perform the services or repairs in a timely, competent workmanlike manner.

B. Misrepresentation by Us or the Issuing Dealer.

ARBITRATION– The following is added to this section:

This arbitration provision does not prohibit an Arizona resident from following the process to resolve complaints under the provisions of A.R.S. 20-1095.09, Unfair Trade Practices as outlined by the Arizona Department of Insurance and Financial Institutions. To learn more about this process, You may contact the Arizona Department of Insurance and Financial Institutions. You may directly file any complaint with the Arizona Department of Insurance and Financial Institutions against a Service Company issuing an approved Service Contract under the provisions of A.R.S. 20-1095.04 and/or 20-1095.09 by contacting the Consumer Protection Division of the Arizona Department of Insurance and Financial Institutions at (602) 364-3100.

COLORADO

CANCELLATIONS AND REFUNDS – Paragraph 4 is deleted in its entirety and replaced with the following:

4. If this Contract is cancelled within the first thirty (30) days, You will be refunded the entire purchase price, less any claims paid. If the Contract is cancelled after thirty (30) days, You will be refunded the lesser of the proration of (a) the number of miles remaining under this Contract before expiration, or (b) the number of days remaining under this Contract before expiration, less any claims paid and a cancellation fee of the lesser of fifty dollars (\$50) or ten percent (10%) of the Contract purchase price.

CANCELLATIONS AND REFUNDS – The following is added to this section:

5. If a refund of a Service Contract provider fee is not paid or credited within forty-five (45) days after the return of the Service Contract then a ten percent (10%) penalty per month shall be added to the refund.

FILING A CLAIM – The following is added to Paragraph 9 of this section: COLORADO POLICY NO. CO-DCP-001.

CONNECTICUT

Notwithstanding anything to the contrary contained herein, the term of this Contract is extended automatically while the covered Vehicle is being repaired pursuant to the terms of this Contract. In-home service is not provided, and the costs of transporting the covered Vehicle are only provided in accordance with the 24-HOUR ROADSIDE ASSISTANCE benefits as stated herein.

CANCELLATIONS AND REFUNDS – Paragraph 1 of this section is amended as follows:

You have a right to return this Contract if the covered Vehicle is lost, stolen, or destroyed.

ARBITRATION– The following is added to this section:

The parties to this Contract will make reasonable efforts to resolve disputes over the terms of this Contract in accordance with Connecticut Agencies Regulations § 42-260-1 et. seq. In the event that the parties cannot reach agreement, the claimant may file a formal written complaint with the Consumer Affairs Division of the Insurance Department. The complaint shall contain a short and plain description of the nature of the dispute, including a description of any attempts made to resolve the dispute and the results of such attempts. The claimant shall state the purchase or lease price of the item subject to the extended warranty, the cost of repair of the item and shall include a copy of the extended warranty contract or agreement. The complaint shall be mailed to:

State of Connecticut
Insurance Department
P.O. Box 816
Hartford, CT 06142-0816
ATTN: Consumer Affairs

DISTRICT OF COLUMBIA

CANCELLATIONS AND REFUNDS– Paragraph 4 is amended as follows:

The administrative fee (referred to in Paragraph 4 as a "cancellation fee") is the lesser of ten percent (10%) of the gross Contract Price paid by You or fifty dollars (\$50).

CANCELLATIONS AND REFUNDS– The following is added to this section:

5. If You are entitled to a full refund, a 10 percent penalty per month shall be added to a refund that is not paid or credited within 45 days after return of this Contract to Us.

FLORIDA

The rate charged for this service agreement is not subject to regulation by the Florida Office of Insurance Regulation.

DEFINITIONS – is amended as follows:

Administrator and Obligor (We, Us, Ours) are both amended to include as follows:

Landcar Agency, Inc. dba Total Care Auto Powered by Asbury (Company Code 57674) is the service agreement company obligated to perform under the terms of this Contract.

TRANSFERRING COVERAGE – is deleted and replaced with the following: This Contract is assignable in a consumer transaction. You have the right to assign Your remaining Coverage under this Contract to a subsequent retail purchaser of Your Vehicle. You must notify the Administrator of such transfer to the new owner within fifteen (15) days of the change in Vehicle ownership at (800) 733-7339 or in writing to 351 Opportunity Way, Suite 440, Draper, Utah 84020, of Your request to transfer this Contract. Upon notification of Your request to

transfer, the Administrator will immediately send to You a transfer form.

You must complete the transfer form and return to the address above with the following:

Forty-dollar (\$40) assignment fee.

A copy of the bill of sale or sales Contract showing the date and mileage of Your Vehicle at the time of sale.

If requested, copies of Your maintenance records showing actual oil changes and manufacturer's required maintenance. All records of maintenance performed on the Vehicle must be retained.

Copies of all maintenance records showing actual oil changes and manufacturer's required maintenance must be given to the new owner. The new owner must retain these records and is subject to the maintenance requirements as specified in this Contract. This Contract may not be transferred to another vehicle and may not be assigned to a new or used vehicle dealer or anyone other than an individual purchasing Your Vehicle from You for personal use.

CANCELLATIONS AND REFUNDS – Paragraph 4 is deleted in its entirety and replaced with the following:

4. If the Contract is cancelled within the first sixty (60) days, You or the lienholder will be refunded the entire purchase price, less any claims paid. If the Contract is cancelled by You or the lienholder after sixty (60) days, You or the lienholder will be refunded 90% of the prorated Contract price paid by You based on the number of days remaining under this Contract before expiration, less any claims paid. No cancellation fee will be charged. If 10% of the pro rata refund amount due exceeds \$50, then that amount in excess of \$50 will be added to the refund amount due. If the Contract is cancelled by Us after sixty (60) days, You will be refunded 100% of the prorated Contract price paid by You based on the number of days remaining under this Contract before expiration, less any claims paid. No cancellation fee will be charged. We remain responsible for all refunds to the consumer on canceled service agreements.

CANCELLATION BY OBLIGOR – B(II) is deleted in its entirety and replaced with the following:

(II) failed to maintain the motor vehicle as prescribed by the manufacturer.

CANCELLATION BY OBLIGOR – is amended as follows:

If We cancel due to Your nonpayment, will provide written notice via certified mail.

GEORGIA

This is not a contract of insurance.

CANCELLATIONS AND REFUNDS – Paragraph 3 is amended to delete the following:

"non-payment,"

CANCELLATIONS AND REFUNDS – Paragraph 4 is amended:

The administrative fee (referred to in Paragraph 4 as a "cancellation fee") is the lesser of ten percent (10%) of the unearned pro rata Contract Price paid by You or fifty dollars (\$50).

CANCELLATIONS AND REFUNDS – The following is added to this section:

5. If You are entitled to a full refund, a 10 percent penalty per month shall be added to a refund that is not paid or credited within 45 days after return of this Contract to Us.

CANCELLATION BY OBLIGOR – is amended as follows:

This Contract shall be noncancelable by Us except in cases of fraud, material misrepresentation, or failure to pay Contract Price. Notice of such cancellation stating the reason for and effective date of the cancellation shall be given to the holder in writing no less than 30 days before the effective date of such cancellation.

EXCLUSIONS – Paragraph 1 is deleted in its entirety and replaced with the following:

1. This Contract does not provide Coverage for Your Vehicle when the Mechanical Breakdown or condition existed prior to the commencement of this Contract when the Mechanical Breakdown or condition existed prior to the commencement of this Contract and was known to You.

EXCLUSIONS – Paragraph 2 is deleted in its entirety and replaced with the following:

2. Repairs and/or replacements not authorized by the Administrator (except emergency repairs performed subject to Contract provisions), or loss due to any mechanical alterations to the Vehicle made by you or with your knowledge not recommended by the manufacturer of the Vehicle

EXCLUSIONS – Paragraph 20 is deleted in its entirety and replaced with the following:

20. Any damage caused by failures resulting from aftermarket modifications or alterations made by You or with Your knowledge including, but not limited to, suspension, lift kits (unless Lift Kit coverage is selected on this Service Contract), superchargers, NOS, modified electronic engine/ transmission control programs.

INELIGIBLE VEHICLES – Item B is deleted in its entirety and replaced with the following:

B. Rebuilt or modified vehicles by You or with Your knowledge.

ARBITRATION – This section is deleted in its entirety.

IDAHO

Coverage afforded under this Contract is not guaranteed by the Idaho Insurance Guaranty Association.

CANCELLATIONS AND REFUNDS - Paragraph 4 is deleted in its entirety and replaced with the following:

4. If this Contract is cancelled within the first thirty (30) days, You will be refunded the entire purchase price. If the Contract is cancelled after thirty (30) days, You will be refunded the lesser of the proration of (a) the number of miles remaining under this Contract before expiration, or (b) the number of days remaining under this Contract before expiration, less a cancellation fee of fifty dollars (\$50).

INDIANA

This service contract is not insurance and is not subject to Indiana insurance law.

MAINE

CANCELLATIONS AND REFUNDS – The following is amended as follows:

Any refund paid will include any sales tax refund required pursuant to state law. The administrative fee (referred to in Paragraph 4 as a "cancellation fee") is the lesser of ten percent (10%) of the Contract Price paid by You or fifty dollars (\$50).

CANCELLATIONS AND REFUNDS – The following is added to this section:

5. If You are entitled to a full refund, a 10 percent penalty per month, based on the provider fee outstanding, shall be added to a refund that is not paid or credited within 45 days after return of this Contract to Us.

MARYLAND

CANCELLATIONS AND REFUNDS – The following is added to this section:

5. If You are entitled to a full refund, a 10 percent penalty per month, based on value of the consideration paid, shall be added to a refund that is not paid or credited within 45 days after return of this Contract to Us.

Notwithstanding anything to the contrary contained herein, the term of this Contract will be extended automatically when We fail to provide the services under this Contract, and this Contract does not terminate until the services are provided in accordance with the terms of this Contract.

ARBITRATION – The following is added to this section:

Pursuant to Maryland Commercial Law Article §14-407(d)(1), if the guarantor or provider breaches any duties under this subtitle, the person guaranteed may file an action in any court of competent jurisdiction.

MASSACHUSETTS

ACCEPTANCE OF COVERAGE – is amended as follows:

The language "Landcar Agency, Inc., dba Total Care Auto Powered by Asbury, the Obligor, 351 W. Opportunity Way, Suite 440, Draper, Utah 84020, (800)733-7339" is deleted in its entirety and replaced with the Dealer listed on Page 1.

DEFINITIONS – is amended as follows:

The Obligor (We, Us, Ours) definition is deleted and replaced as follows:

The Obligor (We, Us, Ours) means the Dealer listed on Page 1., the party obligated to perform or arrange to perform services pursuant to the terms of this Contract.

MISSOURI

CANCELLATIONS AND REFUNDS – Paragraph 4. is amended as follows:

The administrative fee (referred to in Paragraph 4 as a "cancellation fee") is fifty dollars (\$50).

CANCELLATIONS AND REFUNDS – The following is added to this section:

5. We shall mail a written notice to You within forty-five (45) days of termination.

6. If You are entitled to a full refund, a 10 percent penalty per month, based on the amount outstanding, shall be added to a refund that is not paid or credited within 45 days after return of this Contract to Us.

NEW HAMPSHIRE

In the event that You do not receive satisfaction under this Contract, You may contact the New Hampshire insurance department at 21 South Fruit Street, Suite 14, Concord, NH 03301, Phone 603.271.2261, Fax 603.271.1406, and Consumer Hotline 1.800.852.3416. You may contact the Administrator directly regarding questions or complaints.

Notwithstanding anything contrary contained herein, preexisting conditions are only excluded if You knew or should have known about the preexisting condition prior to purchasing this Contract.

ARBITRATION– The following is added to this section:

All arbitration provisions shall state that they are subject to RSA 542, and any civil action or alternative dispute resolution procedure brought in connection with this Contract shall be brought in New Hampshire.

NEW JERSEY

CANCELLATIONS AND REFUNDS – The following is added to this section:

5. If You are entitled to a full refund, a 10 percent penalty per month, based on the purchase price of this Contract, shall be added to a refund that is not paid or credited within 45 days of the cancellation of this Contract.

NEW YORK

CANCELLATIONS AND REFUNDS – The following is added to this section:

5. If You are entitled to a full refund, a 10 percent penalty per month shall be added to a refund that is not paid or credited within 30 days of the return of this Contract to Us.

NEVADA

COVERAGE – The second sentence in this section is modified to read as follows: Replacement components/parts will be new/remanufactured as originally equipped by the manufacturer or of like kind and quality. Aftermarket parts may be used to comply with the terms of this Contract when new/remanufactured parts are not available.

This Contract is not renewable.

TRANSFERRING COVERAGE – This section is amended with the following:

The transfer fee is twenty-five dollars (\$25).

CANCELLATIONS AND REFUNDS – Paragraph 4 is deleted in its entirety and replaced with the following:

4. If this Contract is cancelled within the first thirty (30) days after receipt of the Contract, the full amount of the Contract Price will be refunded to You if no claim has been made against the Contract. If Contract is cancelled after the first thirty (30) days after receipt of the Contract, or if a claim has been made against the Contract, a pro rata refund of the Contract Price will be refunded to You, based on the lesser of the proration of the number of days or number of miles remaining on the Contract and less a cancellation fee of twenty-five dollars (\$25). The cost of claims paid or services provided will not, under any circumstances, be deducted from any refund issued pursuant to this Contract.

CANCELLATIONS AND REFUNDS – The following is added to this section:

5. A penalty of ten percent (10%) of the purchase price for each thirty (30) day period that the refund remains unpaid will be added to the refund amount if payment is not issued within forty-five (45) days from the date the holder returns the Service Contract.

CANCELLATION BY OBLIGOR – This section is deleted in its entirety and replaced with the following:

We will not cancel a service contract that has been in effect for at least seventy (70) days before the expiration of the agreed term or one year after the effective date of the service contract, whichever occurs first, except on any of the following grounds: (a) if you fail to pay an amount when due; (b) if you are convicted of a crime which results in an increase in the service required under this Contract; (c) discovery of fraud or material misrepresentation by you in obtaining this Contract or in presenting a claim for service; or (d) discovery of an act or omission by you or if you violate any condition of this Contract after the effective date of the Contract which substantially and materially increases the service required under this Contract. If We cancel, We will provide written notice at least fifteen (15) days prior to the effective date of cancellation. Such written notice will state the reason for cancellation. Any refund owed will be paid or credited no more than thirty (30) days of the effective date of the cancellation or sooner if required by state law. All cancellations will be refunded according to the Cancellations and Refunds Section of this Contract; however, the cancellation fee will not apply.

FILING A CLAIM – The following is added to this section:

5. If You are not satisfied with the manner in which We are handling a claim on this Contract, You may contact the Commissioner by use of the toll-free number of the Nevada Division of Insurance which can be found at <http://doi.nv.gov/>. The current toll-free number is (888) 872-3234.

NEW MEXICO

CANCELLATIONS AND REFUNDS – Paragraph 4 is deleted in its entirety and replaced with the following:

4. If this Contract is cancelled within the first thirty (30) days, You will be refunded the entire purchase price, less any claims paid. If the Contract is cancelled after thirty (30) days, You will be refunded the lesser of the proration of (a) the number of miles remaining under this Contract before expiration, or (b) the number of days remaining under this Contract before expiration, less any claims paid and a cancellation fee of the lesser of fifty dollars (\$50) or ten percent (10%) of the Contract purchase price.

CANCELLATIONS AND REFUNDS – The following is added to this section:

5. If Contract is cancelled within the first thirty (30) days and no claim has been made, the Provider shall refund to the holder or credit to the account of the holder the purchase price of the Service Contract within thirty (30) days. If the Provider fails to refund the purchase price or credit the account of the holder within that time, the Provider shall pay the holder a penalty of ten percent (10%) of the purchase price for each thirty-day period or portion thereof that the refund and any accrued penalties remain unpaid.

CANCELLATION BY OBLIGOR – This section is deleted in its entirety and replaced with the following:

We will not cancel a service contract that has been in effect for at least 70 days before the expiration of the agreed term or one year after the effective date of the service contract, whichever occurs first, except on any of the following grounds: (a) if you fail to pay an amount when due; (b) if you are convicted of a crime which results in an increase in the service required under this Contract; (c) discovery of fraud or material misrepresentation by you in obtaining this Contract or in presenting a claim for service; or (d) discovery of an act or omission by you or if you violate any condition of this Contract after the effective date of the Contract which substantially and materially increases the service required under this Contract. If We cancel, We will provide written notice at least fifteen (15) days prior to the effective date of cancellation. Such written notice will state the reason for cancellation. Any refund owed will be paid or credited no more than thirty (30) days of the effective date of the cancellation or sooner if required by state law. All cancellations will be refunded according to the Cancellations and Refunds Section of this Contract; however, the cancellation fee will not apply.

FILING A CLAIM – Paragraph 8 is deleted in its entirety and replaced with the following:

8. This Service Contract is insured by Landcar Casualty Company. If the Service Contract Provider fails to pay You or otherwise provide You with the covered service within sixty (60) days of Your submission of a valid claim, You may submit your claim to Landcar Casualty Company at (800) 733-7339, casualty@landcar.com or in writing to them at 351 W. Opportunity Way, Suite 440, Draper, Utah 84020. If You have any concerns regarding the handling of Your claim, You may contact the Office of Superintendent of Insurance at (855) 427-5674.

NORTH CAROLINA

CANCELLATIONS AND REFUNDS – The following is amended as follows:

The administrative fee (referred to in Paragraph 4 as a "cancellation fee") is the lesser of ten percent (10%) of the amount of the pro rata refund or fifty dollars (\$50).

CANCELLATION BY OBLIGOR – The following is added to this section: It is a direct violation of this Contract to materially misrepresent any statement of fact relating to this Contract or any claim for service hereunder. Any such material misrepresentation will form the basis for Us to cancel this Contract. We will not cancel this Contract for discretionary reasons.

SOUTH CAROLINA

In the event of a dispute with the Provider of this Contract, You may contact the South Carolina Department of Insurance, Capitol Center, 1201 Main Street, Ste. 1000, Columbia, South Carolina, 29201 or by phone at (800) 768-3467.

CANCELLATIONS AND REFUNDS – The following is added to this section:

5. If You are entitled to a full refund, a 10 percent penalty per month shall be added to a refund that is not paid or credited within 45 days of the return of this Contract to Us.

TEXAS

Unresolved complaints concerning this Contracts Provider or Administrator or questions concerning the regulation of service contract providers and administrators may be addressed to the Texas Department of Licensing and Regulation by writing to P.O. Box 12157 Austin, Texas 78711 or calling (800) 803-9202.

DEFINITIONS – is amended as follows:

Administrator and Obligor (We, Us, Ours) are both amended to include as follows:

Landcar Agency, Inc. dba Total Care Auto Powered by Asbury (License # 418) is the administrator/obligor obligated to perform under the terms of this Contract.

FILING A CLAIM– Paragraph 8 is deleted in its entirety and replaced with the following:

8. Obligations of the provider under this service contract are insured by Landcar Casualty Company under a service contract reimbursement insurance policy. If the Service Contract Provider fails to pay You or otherwise provide You with the covered service within before the 61st day after the date of proof of loss; or a refund or credit is not paid before the 46th day after the date on which the Contract is canceled, You may submit your claim to Landcar Casualty Company at (800) 733-7339, casualty@landcar.com or in writing to them at 351 W. Opportunity Way, Suite 440, Draper, Utah 84020.

CANCELLATIONS AND REFUNDS – Paragraph 4 is amended as follows: The administrative fee (referred to as a "cancellation fee") is fifty dollars (\$50).

CANCELLATIONS AND REFUNDS – The following is added to this section:

5. If We fail to pay the refund or credit Your account before the 46th day after the date notice of cancellation is received by Us, We are liable to You for a penalty for each month an amount remains outstanding equal to 10 percent of the amount outstanding. The penalty is in addition to the full or prorated purchase price of the Contract that is owed to You under terms of the Contract.

CANCELLATION BY OBLIGOR –this section is amended as follows: We may only cancel the Coverage afforded to You pursuant to this Contract before the Expiration Date for one or more of the following reasons: (a) nonpayment of the Contract Price; (b) fraud or a material misrepresentation by You to the Provider or Administrator; or (c) a substantial breach of duty by You relating to the Vehicle or its use.

UTAH

Purchase of this product is optional and is not required in order to finance, lease, or purchase a motor vehicle. Payment of this contract may be paid with cash, check, or credit card by You or financed with the vehicle loan or lease.

Coverage afforded under this Contract is not guaranteed by the Property and Casualty Guaranty Association. This Contract is subject to limited regulation by the Utah Insurance Department. To file a complaint, contact the Utah Insurance Department.

24-HOUR ROADSIDE ASSISTANCE OPTION – The following is added to this section:

The cost of materials delivered are determined by the actual price paid by the Provider delivering the fuel to You.

FILING A CLAIM – The following is added to this section:

9. Failure to give any notice or file any proof of loss required by the policy within the time specified in the policy does not invalidate a claim made by the insured if the insured shows that it was not reasonably possible to give the notice or file the proof of loss within the prescribed time and that notice was given or proof of loss filed as soon as reasonably possible.

ARBITRATION -This section is deleted in its entirety and replaced with the following:

ANY MATTER IN DISPUTE BETWEEN YOU AND THE OBLIGOR MAY BE SUBJECT TO ARBITRATION AS AN ALTERNATIVE TO COURT ACTION PURSUANT TO THE RULES OF THE AMERICAN ARBITRATION ASSOCIATION, A COPY OF WHICH IS AVAILABLE ON REQUEST FROM THE OBLIGOR. ANY DECISION REACHED BY ARBITRATION SHALL BE BINDING UPON BOTH YOU AND THE OBLIGOR. THE ARBITRATION AWARD MAY INCLUDE ATTORNEY'S FEES IF ALLOWED BY STATE LAW AND MAY BE ENTERED AS A JUDGEMENT IN ANY COURT OF PROPER JURISDICTION.

VERMONT

ARBITRATION– The following is added to this section:

Any civil action brought in connection with this Contract must be brought in Vermont.

VIRGINIA

If any promise made in the Contract has been denied or has not been honored within 60 days after Your request, You may contact the Virginia Department of Agriculture and Consumer Services, Office of Charitable and Regulatory Programs at www.vdacs.virginia.gov/food-extended-service-contract-providers.shtml to file a complaint.

WISCONSIN

THIS CONTRACT IS SUBJECT TO LIMITED REGULATION BY THE OFFICE OF THE COMMISSIONER OF INSURANCE.

FILING A CLAIM – Paragraph 8 is amended to add as follows:

If We do not provide, or reimburse or pay for, a service that is covered under this Contract within 60 days after You provide proof of loss, or if We become insolvent or otherwise financially impaired, You may file a claim directly with LANDCAR CASUALTY COMPANY for reimbursement, payment, or provision of the service.

CANCELLATIONS AND REFUNDS – The following is amended as follows:

The administrative fee (referred to in Paragraph 4 as a "cancellation fee") is the lesser of ten percent (10%) of the Contract Price or seventy-five dollars (\$50).

CANCELLATIONS AND REFUNDS – The following is added to this section:

5. If You are entitled to a full refund, a 10 percent penalty per month, based on the amount outstanding, shall be added to a refund that is not paid or credited within 45 days after return of this Contract to Us. In the event of a total loss of the Vehicle covered by this Contract that is not covered by a replacement of the Vehicle pursuant to the terms of this Contract, You may cancel and will not be charged an administrative fee.

CANCELLATION BY OBLIGOR –this section is amended as follows: We may only cancel the Coverage afforded to You pursuant to this Contract for one or more of the following reasons: (a) nonpayment of the Contract Price; (b) material misrepresentation by You to the Provider or Administrator; or (c) a substantial breach of duty by You relating to the Vehicle or its use.